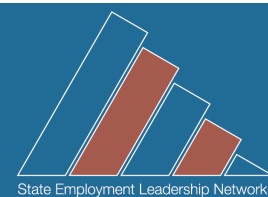


Employment First Resource List



Revised October 2014

Introduction

Over the past decade, the concept of Employment First – the idea that employment in integrated settings within the community should be the priority service option - has emerged in the disability field. The result has been ongoing development of a multitude of documents pertaining to Employment First, including state legislation, policies, reports, articles, etc. The attached list, developed by the State Employment Leadership Network (SELN), is an attempt to provide a comprehensive listing of these documents, as a resource to policymakers, advocates, and others. Originally developed in 2010, this Resource List has been regularly updated as Employment First efforts have evolved across the United States and now internationally. A primary emphasis with this list has been to identify legislation, regulations, and policy directives implementing Employment First policies. For states with an Employment First Policy, this is the first document listed for that state. The list also lists a variety of additional Employment First related reports from individual states, developed by official state workgroups and grassroots initiatives consisting of coalitions of stakeholders working to affect change. In addition, a variety of documents that provide a national perspective have been included.

In compiling this list, an Employment First policy has been defined as an official directive from a state government agency stating that employment in the community in the general workforce is the first and primary option for individuals with disabilities. Use of the term “Employment First” per se has not necessarily been a requirement for including or excluding a document. Instead the focus has been on documents that reinforce the principles of Employment First, whether that specific language is used or not. There are number of examples (e.g., Washington State, Oklahoma) where the term “Employment First” is not part of the policy, and yet clearly the policy is an example of Employment First principles. It should also be noted that there has been a liberal approach to defining a piece of legislation, regulation, or policy directive as an “Employment First policy”. In some cases, these policies consist of highly detailed, substantive, and specific legislation or policy directives. In other cases, the Employment First policy consists of an Executive Order or similar directive that contains language endorsing integrated employment as the first and primary service option for publicly funded services, with limited language in terms of specifics. In other cases, language has been identified within an overall policy directive that clearly aligns with Employment First, although such language may only be a few sentences (e.g., Colorado). With the ongoing expanded interest in Employment First, future editions of this resource list will take a closer look at these policies from a qualitative perspective.

A summary of the status of Employment First is as follows:

- Employment First efforts have been identified in 47 states, and also in Canada.



- Thirty states have been identified that have something akin to an official Employment First policy (based on legislation, policy directive, etc.). Twelve states have passed legislation stating that integrated employment is preferred over other service options: **Alaska, California, Delaware, Illinois, Kansas, Maine, Ohio, Oregon, Texas, Utah, Washington, Wyoming**. The other 18 (**Arkansas, Colorado, Connecticut, District of Columbia, Florida, Louisiana, Maryland, Massachusetts, Minnesota, Mississippi, Missouri, New Jersey, Oklahoma, Pennsylvania, Rhode Island, South Carolina, Tennessee, Virginia**) have a policy directive, Executive Order, or similar official policy statement, but not legislation. There are some states that have both legislation and a non-legislative policy directive (e.g., Maine, Oregon, Washington), and other states (e.g., Mississippi), which have an Executive Order with proposed legislation that has yet to pass.
- Fifteen of these policies are cross-disability: **Alaska, Arkansas, Delaware, District of Columbia, Florida, Illinois, Kansas, Maine, Minnesota, Mississippi, New Jersey, Texas, Utah, Virginia, and Wyoming**. The remainder of states with policies, have policies that focus exclusively on individuals with intellectual and developmental disabilities: **California, Colorado, Connecticut, Louisiana, Maryland, Massachusetts, Missouri, Ohio, Oklahoma, Oregon, Pennsylvania, Rhode Island, South Carolina, Tennessee, Washington**.
- In addition to the 30 states with Employment First policies, the other 17 states on this list (**Alabama, Arizona, Georgia, Idaho, Indiana, Iowa, Kentucky, Michigan, Montana, Nevada, New Mexico, New York, North Carolina, North Dakota, South Dakota, Vermont, Wisconsin**) have Employment First-type efforts and initiatives underway, but at this point it appears no official Employment First policy has been issued stating that integrated employment is the preferred service option. In terms of specific activities in some of these states, **New York** has a September 2014 Executive Order that mandates the development of an Employment First policy. **Nevada** has an Executive Order establishing a Governor's Taskforce on Integrated Employment. Two states (**Alabama, Kentucky**) have been identified that have Employment First legislation that has been proposed, but hasn't passed. **North Dakota** passed legislation creating a Committee on Employment of People with Disabilities to support the goal of Employment First. However this legislation does not institute Employment First as a policy – i.e., it does not specifically prioritize integrated employment over other service options.

It is important to recognize that the presence or lack of presence on this list of any state should not necessarily be an indicator regarding the state's focus on employment for people with disabilities. There are a number of states that have not been linked with Employment First, who have consistently had relatively strong outcomes in terms of employment of people with disabilities. However, the emergence of Employment First as a national movement has served as a catalyst for an increased focus on employment of people with disabilities across the United States.

In the course of developing this document, the focus has been on including as many examples as possible, particularly in terms of resources from individual states. The underlying rationale for doing so is to provide an



understanding of the wide range of approaches to Employment First. Inclusion of specific policies and documents on this list should in no way be viewed as an endorsement of these documents, and as noted, the Employment First legislation/policies that have been developed vary significantly in terms of the strength and clarity of their language.

The wide range of attention and emphasis on Employment First has been encouraging, and provides a potential catalyst for the long needed increase in workforce participation for individuals with disabilities. At the same time, it is important to recognize that creation of documents, reports, and policies, in and of itself, will not result in increases in workforce participation, without a long-term commitment to action steps that make the Employment First vision a reality for all citizens with disabilities. Setting a vision and direction is a starting point – but it must be done in conjunction with comprehensive systems change that results in shifting of resources towards integrated employment, a service system that provides consistent and high quality employment assistance and supports, and measurement and accountability for achieving employment outcomes. Employment First is also about more than just simply changing how services and supports for people with disabilities are provided – it is a catalyst for and reflective of an ongoing fundamental cultural shift and view by policymakers, public officials, service systems, service providers, employers, and most importantly by individuals with disabilities themselves, that views people with disabilities as full participants in the economic mainstream, working side-by-side with their fellow citizens.

General Information on Employment First

1. **APSE – Association of People Supporting EmploymentFirst Information and Publications**

Section of APSE website devoted to Employment First with array of information and resources including the APSE Employment First Statement , outlining key principles: www.apse.org/employment-first

2. **Alliance for Full Participation**

The Alliance for Full Participation (AFP) site contains a number of Employment First documents and updates from various states on their Employment First activities - www.allianceforfullparticipation.org

3. **Intellectual and Developmental Disabilities Article**

Employment First: A Beginning Not an End: August 2011 Intellectual and Developmental Disabilities journal article summarizing the principles of Employment First - <http://aaiddjournals.org/toc/mere/49/4>

4. **NGA Report – A Better Bottom Line: Employing People With Disabilities – Blueprint for Governors**

2013 report from the National Governor's Association, that notes Employment First as an effective strategy, and documents the adoption of it by a number of states - www.nga.org/files/live/sites/NGA/files/pdf/2013/NGA_2013BetterBottomLineWeb.pdf

5. **NACDD Report – The Time is Now: Embracing Employment First**

November 2011 report from the National Association of Councils on Developmental Disabilities, providing an overview of Employment First, with a particular focus on DD Council efforts - www.acl.gov/programs/aidd/Program_Resource_Search/Resources/embracing-employment-first.aspx



6. NASDDDS Article – Workers First: Article from June 2009 Community Services Reporter

Published by National Association of State Directors of Developmental Disabilities Services providing an overview of Employment First efforts - www.nasddds.org/resource-library/employment/workers-first

7. NTAR Leadership Center Blog: Blog post on Employment First by Wendy Parent, Kansas University -

<http://ntarseedingchange.blogspot.com/2010/03/employment-first.html>

8. ODEP-USDOL

a. Employment First Leadership Mentor Program: Information on state's participating in ODEP's Employment First Leadership Mentor Program -

<http://www.dol.gov/odep/media/newsroom/employmentfirststates.htm#.UKqjpY6YXeQ>

b. Employment First Memo: January 2009 memo from the US Department of Labor Office of Disability Employment Policy stressing importance of Employment First

9. SELN Employment First Publication: “Q & A’s on State Employment First Policies”

Publication from the State Employment Leadership Network (SELN) providing an overview of Employment First, and specific efforts in Colorado, Florida, Oklahoma, Pennsylvania, Tennessee, Washington State, Georgia, Minnesota, and Indiana -

http://selnmembers.org/images/stories/site_documents/dmr%20request%20employment%20policy%203-08rev.pdf



State Specific Information

1. ALABAMA

- a. **AL Legislation (proposed):** The Alabama Employment First Initiative Act, originally introduced in April 2013 - <http://alisondb.legislature.state.al.us/acas/searchableinstruments/2013RS/Printfiles/SB464-int.pdf>
- b. **DD Council Fact Sheets:** Fact sheets from the Alabama Council on Developmental Disabilities on Employment First Legislation - <http://acdd.org/legislation>

2. ALASKA

- a. **AK Legislation (passed):** Text of HB 211, signed into law in May 2014. Legislation is cross-disability, and specifies that Employment First applies to individuals receiving transition services as well as adults - www.legis.state.ak.us/basis/get_bill_text.asp?hsid=HB0211Z&session=28
- b. **AK Employment First Legislative Packet:** The Employment First Bill - Supporting Research Packet Overview developed for legislators as part of effort to pass Employment First legislation - <http://dhss.alaska.gov/gcdse/Documents/committees/et/FullPacket.pdf>

3. ARIZONA - Arizona Department of Economic Security Division of Developmental Disabilities summary of Arizona efforts on Employment First - www.azdes.gov/landing.aspx?id=14524

4. ARKANSAS

- a. **AR Employment First Executive Order:** Governor's 2010 Executive Order establishing the Arkansas Employment First Initiative
http://governor.arkansas.gov/newsroom/index.php?do:newsDetail=1&news_id=2558
- b. **AR Task Force Report:** Final Report of Arkansas Employment First Task Force - www.daas.ar.gov/pdf/NewsEvents/Employment%20First%20Task%20Force%20Report%20-%20Final.pdf

5. CALIFORNIA

- a. **CA Legislation (passed):** Text of AB 1041, California's legislation on Employment First, signed into law in October 2013, establishing an Employment First policy for individuals served by the state's developmental disability system - www.leginfo.ca.gov/pub/13-14/bill/asm/ab_1001-1050/ab_1041_bill_20131009_chaptered.pdf
- b. **CA Legislation (summary):** Summary from State Council on Developmental Disabilities on AB 1041, establishing an Employment First policy - www.scdd.ca.gov/res/docs/pdf/Employment_First/Employment%20First%20Policy%20Summary%20SCDD%20CECY.pdf
- c. **CA Legislation (passed):** Text of AB 287, California's legislation on Employment First, signed into law in October 2009, establishing Employment First Committee, and calling for the establishment of an Employment First Policy - www.leginfo.ca.gov/pub/09-10/bill/asm/ab_0251-0300/ab_287_bill_20091011_chaptered.pdf
- d. **Committee on Employment First:** Materials from State Council on Developmental Disabilities Committee on Employment First - [www.scdd.ca.gov/Employment_First_Policy_\(AB_2424\).htm](http://www.scdd.ca.gov/Employment_First_Policy_(AB_2424).htm)
- e. **CA DD Council Report:** 2012 Annual Report from State Council on Developmental Disabilities on Employment First - www.scdd.ca.gov/res/docs/pdf/Employment_First/2012%20EFC%20Annual%20Report%20Jan%2016%202013.pdf

6. COLORADO - Policy on Integrated Employment: Colorado Division for Developmental Disabilities rule 16.626 stating that integrated employment is considered the primary service option for adults Day Habilitation Services and Supports - www.colorado.gov/apps/cdhs/rral/ruleDetails.jsf



7. CONNECTICUT

- a. **CT Employment First Policy:** Employment First Policy issued by Connecticut Department of Developmental Services issue in April 2011 - www.ct.gov/dds/lib/dds/dds_manual/ic5/ic5po001_employment_first.pdf
- b. **CT Policy Regarding Employment as a Priority:** Companion to April 2011 Employment First policy regarding implementation steps in individual planning process: www.ct.gov/dds/lib/dds/dds_manual/ic5/ic5pr001_employment_first.pdf
- c. **CT DDS Employment First Overview:** Web page providing overview and resources materials regarding Connecticut's Employment First efforts - www.ct.gov/dds/cwp/view.asp?q=492524

8. DELAWARE

- a. **DE Employment First Legislation (passed):** Text of House Bill 319, Delaware's cross-disability legislation on Employment First, signed into law in July 2012 - [http://legis.delaware.gov/LIS/lis146.nsf/vwLegislation/HB+319/\\$file/legis.html?open](http://legis.delaware.gov/LIS/lis146.nsf/vwLegislation/HB+319/$file/legis.html?open)
- b. **DE Employment First Statement:** Statement from Delaware Division of Developmental Disabilities Services on Employment First - www.dhss.delaware.gov/ddds/emp_first.html

9. DISTRICT OF COLUMBIA

- a. **Mayoral Proclamation on Employment First:** October 2012 Mayoral Proclamation declaring the District of Columbia an Employment First State
- b. **D.C. P & A Employment Report:** Report from University Legal Services, protection and advocacy program for District of Columbia, advocating support for Employment First efforts. Includes copy of October 2012 Mayoral Proclamation in appendix - www.uls-dc.org/Employment%20Report_FINAL.pdf
- c. **DDS Employment First Summary:** Department on Disability Services web page providing overview of District's Employment First efforts - <http://dds.dc.gov/page/employment-first>

10. FLORIDA

- a. **FL Executive Order:** October 2013 Executive Order directing state agencies to identify financing and contract methods that will prioritize employment - www.flgov.com/wp-content/uploads/orders/2013/13-284-disabilities.pdf
- b. **Employment First Florida:** Information from Florida Developmental Disabilities Council on Employment First efforts - www.fddc.org/Employment
- c. **Developmental Disabilities Council Employment First Statement:** Statement from Florida DD Council in support of Employment First - www.fddc.org/about/employment

11. GEORGIA:

- a. **Employment First Georgia Website:** www.employmentfirstgeorgia.org
- b. **GA DD Council Statement:** Statement issued in 2010 by Georgia Developmental Disabilities Council calling for an Employment First policy in the state: www.gcdd.org/wp-content/uploads/2010/09/employmentfirstpolicypaper.pdf

12. **IDAHO - Employment 1st Consortium:** Information on the Idaho Employment First Consortium, which operates under the auspices of the Idaho Council on Developmental Disabilities - <http://www.icdd.idaho.gov/projects/employment%20first.html>



13. ILLINOIS:

- a. **IL Employment First Legislation (passed):** HB 2591 Illinois Employment First Act, passed in May 2013 – www.ilga.gov/legislation/98/HB/PDF/09800HB2591lv.pdf
- b. **Advocacy information for Illinois Employment First Act:** Information from the Family Support Network regarding advocating for the Illinois Employment First Act - <http://us2.campaign-archive1.com/?u=bcec73d19574f43e0b9ab00c1&id=d3db098f9a>
- c. **IL Employment First Act Fact Sheet:** Fact sheet for legislators on Illinois Employment First Act – www.thearc.org/wp-content/uploads/2013/04/Employment_First_Fact_Sheet_HB2591-03142013.pdf
- d. **Report recommending Employment First for Illinois:** January 2011 report of legislatively mandated *Employment and Economic Opportunity for Persons with Disabilities Task Force*, that includes a recommendation (pp. 7-8), that Illinois become an Employment First state, according to specific principles outlined within the report: www.illinoislegalsaid.org/calendarUploads/Governors%20task%20force%20report%20-%202010-11.pdf
- e. **Report from the IL Employment First Summit:** Report from 2012 IL Employment First summit - www.state.il.us/agency/icdd/pdf/Illinois%20Employment%20First%20Summit%20Report%205-11-12.pdf

14. INDIANA

- a. **IN APSE Employment First Statement:** Statement from Indiana APSE advocating for Employment First - www.inapse.org/styles/inapse/defiles/Employment-First-Statement-%203_27_13.pdf
- b. **IN APSE Employment First 2009 Follow-up:** Summary of follow-up items from 2005 Indiana Employment First Summit - www.inapse.org/styles/inapse/defiles/summit%20update%202012-15-09.pdf
- c. **IN Employment First Fact Sheet:** Fact sheet summarizing 2005 Indiana Employment First Summit - www.apse.org/docs/IN_APSE_empl_first_fact_sheet.pdf

15. IOWA

- a. **IA DHS Employment Vision:** Statement on Iowa Department of Human Services website in support of Employment First - <http://dhs.iowa.gov/mhds/disability-services/employment>
- b. **IA Employment First Initiative: A Call for Change of Historical Proportion:** Fall 2009 white paper outlining vision for an Employment First initiative in Iowa - www.iowa-apse.org/agendas/whitepaper.pdf
- c. **IA Employment First Initiative Summary Points:** One-page summary of rationale for Employment First in Iowa

16. KANSAS

- a. **KS Employment First Legislation (passed):** Text of Kansas House Bill 2336 that establishes a statewide policy of employment first for all people with disabilities. Bill was signed into law in May 2011 - www.kslegislature.org/li/b2011_12/year1/measures/documents/hb2336_enrolled.pdf
- b. **KS Employment First Website:** Website with information on Employment First efforts in Kansas - <http://employment1st.org>
- c. **KS Employment First Report:** 2012 report to KS legislature from Kansas Employment first Oversight Commission - www.ksde.org/Portals/0/SES/SEAC/SEAC-12-13-Report-20130115-EmploymentFirstOversightCommission2012Report.pdf
- d. **KS Report – Employment First Workgroup:** May 2009 from Employment First Initiative Work Group - www.apse.org/docs/aaaemployment_first_work_group_initial_report.pdf
- e. **KS Executive Orders:** Executive orders from the Governor of Kansas issued August 2010, related to employment of individuals in the community.



17. KENTUCKY

- a. **Employment First Legislation (proposed):** Proposed Employment First bill, HB 292, introduced in February 2013 - www.lrc.ky.gov/record/13RS/HB292.htm
- b. **KY DD Council Report:** Report from Kentucky's developmental disabilities council State Activities to Implement Employment First as the Employment Strategy for Individuals with Intellectual and Developmental Disabilities - [www.hdi.uky.edu/setp/Materials/Employment First Report Final 050713 corrected 071813.pdf](http://www.hdi.uky.edu/setp/Materials/Employment%20First%20Report%20Final%20050713%20corrected%20071813.pdf)

18. LOUISIANA - Employment First Policy:

July 2011 Employment First policy statement from the Louisiana Office of Citizens with Developmental Disabilities - [http://new.dhh.louisiana.gov/assets/docs/OCDD/Other/Employment First MEMO.pdf](http://new.dhh.louisiana.gov/assets/docs/OCDD/Other/Employment%20First%20MEMO.pdf)

19. MAINE

- a. **ME Employment First Legislation (passed):** Maine Legislature Bill LD 1352 – Employment First legislation. Bill became law in June 2013 - www.mainelegislature.org/legis/bills/getPDF.asp?paper=SP0471&item=6&snum=126
- b. **ME Employment Policy:** 2010 Maine Department of Health and Human Services Employment Policy, indicating that all individuals are presumed able and have the opportunity to work - [www.maine.gov/dhhs/policies/Employment Policy for Individuals Served.pdf](http://www.maine.gov/dhhs/policies/Employment_Policy_for_Individuals_Served.pdf)
- c. **ME Employment First Website:** Website of ME Employment First coalition - www.employmentfirstmaine.org

20. MARYLAND

- a. **MD Development Disabilities Administration Position Statement on Employment Services:** October 2008 statement indicating employment in the community is first service option that should be considered - <http://dda.dhmdh.maryland.gov/SitePages/Training/DDA91809.pdf>
- b. **Employment First in Maryland 3.0:** Presentation from 2012 Maryland Rehabilitation Conference
- c. **MD Employment First Overview:** 2008 overview of Maryland's Development Disabilities Administration Employment First initiative - www.reinventingquality.org/docs/ColleenGauruder-08.pdf

21. MASSACHUSETTS

- a. **MA Employment First Policy:** 2010 policy issuance from Massachusetts Department of Developmental Disability Services - www.mass.gov/eohhs/gov/laws-regs/dds/policies/s-employment-first-policy-2010-2.html
- b. **MA DDS RFQ:** Excerpts from 2009 Massachusetts Department of Developmental Disability Services service provider solicitation, highlighting a shift in Massachusetts to an Employment First Policy
- c. **MA Employment Blueprint:** Massachusetts state plan for increasing employment by the state developmental disability system and full implementation of the state's Employment First policy - www.addp.org/images/Nov2013Conference/blueprint%20for%20success%20full%20version%20final%2011.6.13.pdf

22. MICHIGAN

- a. **MI Employment First Report** – Report from MI Protection and Advocacy, Developmental Disabilities Institute – Wayne State University, and MI Developmental Disabilities Council, recommending Employment First legislation - http://mpas.org/sites/default/files/115075_mpa_employment_first_rprrt_prf5.pdf
- b. **MI DD Council Statement:** August 2013 Employment First Mission and Principles adopted by the MI Developmental Disabilities Council (look under “Important Information”) - www.michigan.gov/mdch/0,4612,7-132-2941_4868_4897-306627--,00.html



- c. **Employment Works! Policy:** June 2011 Bureau of Community Mental Health Services Employment Works! Policy indicating that all individuals with serious mental illness and development disabilities will be provided the opportunity to pursue integrated, competitive employment; intended to form the basis for a future Employment First policy - www.michigan.gov/documents/mdch/FY09-10MAContractwithallattachments_312218_7.pdf (pp.361-363- Attachment C6.8.7.1)

23. MINNESOTA

- a. **MN Employment First Policy:** MN Department of Human Services Employment First policy, approved in September 2014; policy will be posted at this link (as of this writing draft policy is posted): <http://mn.gov/dhs/partners-and-providers/continuing-care/reform-initiatives/employment-learning-community.jsp>
- b. **MN Olmstead Plan:** Minnesota's state Olmstead plan, calling for the adoption of a state Employment First policy - www.dhs.state.mn.us/main/groups/olmstead/documents/pub/dhs16_180147.pdf
- c. **MN Employment First Summit Reports:** Reports from MN Employment First Summits I, II, III, IV, held from 2007-2011 - www.mnapse.org/employment-first#!action/c1ulz
- d. **MN Employment Policy Initiative Website:** www.mn-epi.org/main

24. MISSISSIPPI

- a. **MS Executive Order:** January 2014 Executive Order directing state agencies to ensure employment in integrated settings as the first priority option to the extent feasible - www.governorbryant.com/wp-content/uploads/2012/07/EO-1335.pdf
- b. **Legislation (proposed):** 2014 proposed legislation implementing an Employment First policy - <http://billstatus.ls.state.ms.us/documents/2014/pdf/HB/0100-0199/HB0132PS.pdf>

- 25. **MISSOURI – DDD Employment First Policy:** January 2011 Employment First Policy, issued by the Missouri Department of Mental Health, Division of Developmental Disabilities – www.dmh.mo.gov/docs/dd/employmentpolicyfinal.doc

- 26. **MONTANA – Montana Employment First Initiative Statement:** Statement under “*Workgroup Papers*” - www.dphhs.mt.gov/dsd/ddp/seln.shtml

27. NEVADA

- a. **NV Executive Order:** July 2014 Executive Order establishing a taskforce on integrated employment - http://gov.nv.gov/uploadedFiles/govnvgov/Content/News_and_Media/Executive_Orders/2014_Images/EO_2014-16.pdf
- b. **NV Governor's Council Employment Position Statement and Report:** 2014 Nevada's Governors Council on Developmental Disabilities position statement and report on integrated employment - <http://adsd.nv.gov/uploadedFiles/adsdnvgov/content/Boards/CSPD/OlmsteadSub/IntegratedEmploymentFinal.pdf>
- c. **NV Governor's Council Employment Position Statement:** 2013 Nevada's Governors Council on Developmental Disabilities Position on Employment, recommending implementation of Employment First policies
- d. **Employment First Legislative Presentation:** May 2014 presentation on Employment First to NV Legislature Committee on Senior Citizens, Veterans and Adults with Special Needs - www.leg.state.nv.us/interim/77th2013/Committee/StatCom/SeniorVetSpecial/Other/21-May-2014/VIAManningHarrington.pdf



28. **NEW MEXICO – Employment First Webinar:** 2010 “Making Employment First a Reality in NM” webinar and text - <http://archive.nmhealth.org/ddsd/meaningfullife/EmployFirstRsrcs.htm#Sec3>
29. **NEW JERSEY**
- a. **NJ Governor’s Declaration:** Governor’s April 2012 press release announcing that New Jersey is an Employment First state - http://lwd.dol.state.nj.us/labor/lwdhome/press/2012/20120419_employment_first.html
 - b. **NJ DHS Statement: Statement on NJ Department of Human Services website stating that competitive employment is the first and preferred post-education activity for everyone, including people with disabilities** - <http://www.state.nj.us/humanservices/involved/employmentfirst.html>
 - c. **NJ DDD ISP Form:** NJ Department of Developmental Disabilities Individual Service Planning Form, that requires documentation regarding compliance with the state’s Employment First policy - www.state.nj.us/humanservices/ddd/documents/Documents%20for%20Web/NJISP%20form.pdf
 - d. **NJ DD Council Statement:** Statement from NJ Council on Developmental Disabilities with recommendations for implementation of Employment First policy - <https://www.njcedd.org/2012-04-23-13-42-40/position-statements/employment>
30. **NEW YORK – Executive Order:** September 2014 Executive Order establishing Employment First Commission, to create an Employment First policy - www.governor.ny.gov/executiveorder/136
31. **NORTH CAROLINA**
- a. **NC DHHS Employment First Information:** Overview of Employment First on state Department of Health and Human Services website: www.ncdhhs.gov/mhddsas/services/employment
 - b. **NC AFP Position Paper:** February 2012 Position paper from the North Carolina Alliance for Full Participation Paper on Employment First - www.nc-ddc.org/publications/ncafp_employment_first_10_19_11-endorsements-updated-2-15-12.pdf
 - c. **NC APSE Article:** Article from North Carolina APSE calling for an Employment First Policy
32. **NORTH DAKOTA**
- a. **ND Legislation (passed):** Legislation signed into law in April 2013, establishing a Committee on Employment of People with Disabilities, for furthering the goal of employment as the first option for people with disabilities - www.legis.nd.gov/assembly/63-2013/documents/13-0182-04000.pdf?20130404122652
 - b. **ND Employment First Summit Report:** October 2011 report summarizing the findings and plan of action resulting from the state’s Employment First summit in October 2010 - www.independencecil.org/News.aspx?ID=22
33. **OHIO**
- a. **OH Employment First Executive Order:** March 2012 Governor’s Executive Order establishing an Employment First Policy and Taskforce to Expand Community Employment Opportunities for Working-Age Ohioans with Developmental Disabilities - www.olrs.ohio.gov/sites/olrs.ohio.gov/files/u5/gov-employ-exec-order-2012-05k.pdf
 - b. **OH Employment First Legislation:** Passed in July 2013 - Sec. 5123.022 of FY 2014 Budget Bill (H.B. 59) that includes language making Ohio’s Employment First policy for individuals with developmental disabilities state law - www.legislature.state.oh.us/BillText130/130_HB_59_EN_N.html
 - c. **OH Employment First Website:** State website with information and updates on Employment First in Ohio - www.ohioemploymentfirst.org



- d. **OH SELF Waiver Employment First Policy:** Ohio Department of Developmental Disabilities Self Empowered Life (SELF) Waiver, effective July 1, 2012, that institutes Employment First Policy. Documents available include waiver (Employment First reference on p. 76), Employment First Form, and PowerPoint providing overview of SELF Waiver - [http://odmrdd.state.oh.us/medicaid/Pages/Self-Empowered-Life-Funding-\(SELF\)-waiver-.aspx](http://odmrdd.state.oh.us/medicaid/Pages/Self-Empowered-Life-Funding-(SELF)-waiver-.aspx)
- e. **People First of Ohio Call to Action:** “Blazing New Trails to Employment” document from People First of Ohio, advocating for specific strategies to implement Employment First - www.disabilityrightsohio.org/sites/default/files/ux/pfo-summary-apr-2012.pdf
- f. **OH Employment First Form:** Form required for completion if an individual does not choose community employment - <http://dodd.ohio.gov/medicaid/Documents/DODD%20Employment%20First%20Form1.pdf>

34. OKLAHOMA - DDS Employment Policy: Oklahoma Developmental Disabilities Services employment policy, stating that the optimal goal of waiver services is full-time employment in the community - www.okdhs.org/library/policy/oac317/040/07/0001000.htm

34. OREGON

- a. **OR Legislation:** Senate Bill 22, Employment First legislation, effective April 2013 - <https://olis.leg.state.or.us/liz/2013R1/Downloads/MeasureDocument/SB22/Enrolled>
- b. **OR DDS Policy:** Oregon Office of Developmental Disability Services October 2008 policy on employment for working age individuals - <http://ocdd.org/index.php/ocdd/docs/205/>
- c. **OR Executive Order:** Oregon Governor’s Executive Order, issued in April 2013, with specific actions, requirements, and targets, for increasing employment of individuals with intellectual and developmental disabilities, to be implemented by the Oregon Office of Developmental Disability Services, Office of Vocational Rehabilitation Services, and Oregon Department of Education - www.oregon.gov/gov/docs/executive_orders/eo_13-04.pdf
- d. **OR DDS Employment First Initiative:** Oregon Department of Human Services website on Employment First - www.oregon.gov/dhs/employment/employment-first/Pages/index.aspx
- e. **Article on Employment First:** Opinion piece, from March 2010, published in Oregon newspapers - <http://theportlander.com/2010/03/16/employment-first-for-all-oregonians>
- f. **OR Employment First Plan:** Plan developed for implementation of Employment First in Oregon - https://www.sidestreetshop.com/stores/195/libraries/articulate/wise_or_ef_recommendations_paper_1_28_2011_final_w_o_copyright_notice_1_.pdf
- g. **OR Employment First Initiative Website:** <http://employment-first.org>

36. PENNSYLVANIA

- a. **PA Employment Policy – 1990:** 1990 policy document from Pennsylvania Office of Mental Retardation directing that community employment be considered as a service option before less integrated, more restricted options - www.temple.edu/thetrainingpartnership/resources/mrBulletins/misc/6000-90-06.pdf
- b. **PA Employment Policy - General:** 2005 policy document from Pennsylvania Office of Mental Retardation on community employment as a priority - www.temple.edu/thetrainingpartnership/resources/mrBulletins/misc/00-05-07.pdf
- c. **PA Employment Policy – ICFs/MR:** 2005 policy document from Pennsylvania Department of Public welfare on supporting community employment for individuals living in Intermediate Care Facilities for Individuals with Mental Retardation, indicating community employment as a priority without regard to level of disability - www.temple.edu/thetrainingpartnership/resources/mrBulletins/icf/00-06-08.pdf
- d. **PA APSE Presentation:** 2014 presentation by PA APSE – “Pennsylvania’s Employment First Path” - www.networksfortraining.org/downloads/pdfs/2012_13/Pennsylvanias%20Employment%20First%20PATH.pdf



37. RHODE ISLAND

- a. **RI BHDDH Employment First Policy:** February 2013 Employment First policy for individuals with developmental disabilities issued by the Rhode Island Department of Behavioral Healthcare, Developmental Disabilities and Hospitals – www.riemploymentfirst.ri.gov/policy/pdf/Emp.%20First%20Policy_DD_Final_1_22_14.pdf?185
- b. **RI Employment First Overview** – Overview of Employment first from Rhode Island Department of Behavioral Healthcare, Developmental Disabilities and Hospitals - www.riemploymentfirst.ri.gov
- c. **USDOJ Consent Decree Mandating Employment First for Transition:** 2014 consent decree with US Department of Justice, mandating an Employment First Policy for the Rhode Island Department of Education - www.ada.gov/olmstead/olmstead_cases_list2.htm#ri-state
- d. **RI BHDDH Policy Regarding New Entrants to System:** Policy issuance from Rhode Island Department of Behavioral Healthcare, Developmental Disabilities and Hospitals, regarding compliance of new entrants to system with Employment First policy
- e. **RI Employment First Summit Report:** Report of Employment First Summit held in March 2010 - www.rhodesoindependence.org/docs/final%20summary%20report.pdf
- f. **RI Employment First Policy White Paper:** November 2010 paper discussing options for Employment First legislation in Rhode Island - www.rhodesoindependence.org/docs/Policy%20White%20Paper%20-%20Final%20-%202011.23.10.pdf
- g. **RI 1115 Waiver Group Report:** September 2009 paper which contains initial proposal for Rhode Island to be an Employment First state - www.ohhs.ri.gov/documents/documents09/Employmt_Wkgrp_recs.pdf

38. SOUTH DAKOTA

- a. **SD Governor's Statement:** July 2013 statement from Governor of South Dakota, declaring goal of making South Dakota an Employment First state - <http://news.sd.gov/newsitem.aspx?id=14821>
- b. **SD Taskforce Report:** January 2014 South Dakota Employment Works Taskforce Report on increasing employment of people with disabilities, as a result of Governor's Employment First Initiative - [http://dhs.sd.gov/EWTF/Employment%20Works%20Task%20Force%20report%20\(FINAL\).pdf](http://dhs.sd.gov/EWTF/Employment%20Works%20Task%20Force%20report%20(FINAL).pdf)

39. **SOUTH CAROLINA – SCDDSN Policy Statement:** Policy statement from SC Department of Developmental Disabilities and Special Needs Day Services Manual “embracing the principles of employment first” - <http://ddsn.sc.gov/providers/manualsandguidelines/Documents/daysservicesmanual/Employment%20First%20in%20South%20Carolina.PDF>

40. TENNESSEE

- a. **TN DMRS Employment First Statement:** 2003 statement of support from the Tennessee Division of Mental Retardation Services in support of Tennessee's Employment First! Initiative - www.onestops.info/resources/TN_CEP/Employment_First_Final.doc
- b. **TN Executive Order:** June 2013 Governor's Executive Order establishing the Tennessee Employment First Initiative - www.tn.gov/sos/pub/execorders/exec-orders-haslam28.pdf
- c. **TN EF Report:** September 2014 report from the Tennessee Employment First Task Force - http://tn.gov/didd/employment-1st/docs/taskforce/ExpectEmployment-Sept_2014.pdf
- d. **TN DIDD Employment First Website:** Employment First section of Tennessee Department of Intellectual and Developmental Disabilities website - www.tn.gov/didd/employment-1st
- e. **TN DMRS Provider Manual Excerpt:** Excerpt from 2005 Tennessee Division of Mental Retardation Services provider manual regarding Employment First, and requirements for vocational evaluation (situational assessment) every three years. To find this excerpt, go to the full manual and search for “Employment First” – www.state.tn.us/dids/provider_agencies/Provider%20Manual.pdf



- f. **TN Employment First Overview:** Publication from the Institute for Community Inclusion providing an overview of Tennessee's Employment First policy - www.communityinclusion.org/article.php?article_id=202

41. TEXAS

- a. **TX Legislation (passed):** June 2013 Texas Senate Bill 1226, establishing that earning a living wage through competitive employment is the preferred outcome for individuals with disabilities - www.statutes.legis.state.tx.us/Docs/GV/htm/GV.531.htm#531.02447
- b. **TX DD Council Statement on Employment First:** Texas Council on Developmental Disabilities statement calling for an Employment First policy - <http://tcdd.texas.gov/public-policy/policies-recommendations/employment-first/>
- c. **TX Taskforce:** Website of Texas Employment First Taskforce - www.dads.state.tx.us/providers/supportedemployment/pi/index.html

42. UTAH

- a. **UT 2011 Legislation (passed):** HB 240, signed into law in March 2011, requiring that employment be the first priority for individuals with disabilities receiving services from the Department of Workforce Services, the Utah State Office of Rehabilitation, and the Division of Services for People with Disabilities - <http://le.utah.gov/~2011/bills/hbillenr/hb0240.pdf>
- b. **UT 2012 Legislation (passed):** HB 240, signed into law in March 2012, requiring that employment be the first priority for individuals with disabilities receiving services from the Department of Workforce Services, and Division of Substance Abuse and Mental Health - <http://le.utah.gov/~2012/bills/hbillenr/HB0296.pdf>
- c. **UT Employment First Report:** August 2012 Utah Employment First Report

43. VERMONT – Vermont does not have an Employment First policy. However, Vermont's Developmental Disability Services in the state Department of Disability and Aging Services has a number of policies in support of an Employment First paradigm. Among these are:

- a. **VT Employment Philosophy:** A public stated philosophy that presumes employability for all - <http://ddas.vermont.gov/ddas-programs/programs-se-default-page>
- b. **VT Funding Policy:** For those receiving employment supports, use of funds for sheltered workshops or enclaves is not allowed– p. 43 of System of Care Plan - <http://ddas.vermont.gov/ddas-policies/policies-dds/policies-dds-documents/policies-dds-documents-soc-plans/socp-fy-15-17>

44. VIRGINIA

- a. **VA DBHDS Policy on Employment First:** December 2012 Virginia Department of Behavioral Health and Developmental Services policy on Employment First - www.dbhds.virginia.gov/library/document-library/approved%201044%20_sys_%2012-1.pdf
- b. **USDOJ Settlement Agreement Mandating Employment First Policy:** US Department of Justice settlement with the state of Virginia mandating implementation of an Employment First policy - www.ada.gov/olmstead/olmstead_cases_list2.htm#va
- c. **VA Legislation (passed):** Joint Virginia and Senate House Resolution, passed in 2012, encouraging the Secretary of Health and Human Resources and the Superintendent of Public Instruction to adopt and implement Employment First practices in providing and coordinating services to Virginians with disabilities- <http://lis.virginia.gov/cgi-bin/legp604.exe?121+sum+SJ127>
- d. **VA DBHDS Strategic Plan for Employment First:** October 2012 Employment First strategic plan issued by Virginia Department of Behavioral Health and Developmental Services - www.dbhds.virginia.gov/library/document-library/dbhdsstrategicplanforemploymentfirst_final.pdf



- e. **VA DBHDS Website – Employment First Initiative:** Section of Virginia Department of Behavioral Health and Developmental Services website focused on Employment First - www.dbhds.virginia.gov/individuals-and-families/developmental-disabilities/employment-first

45. WASHINGTON STATE

- a. **WA State Policy:** Washington Division of Developmental Disabilities Working Age Adult Policy; initially adopted in 2004, most recently updated 2012 - www.dshs.wa.gov/pdf/adsa/ddd/policies/policy4.11.pdf
- b. **WA State Legislation:** Legislation passed in 2012 establishing parameters around employment as first priority for individuals with developmental disabilities, with option of alternative community access program - <http://apps.leg.wa.gov/documents/billdocs/2011-12/Pdf/Bills/Senate%20Bills/6384.pdf>
- c. **ICI Pub-Washington WAAP:** Publication from the Institute for Community Inclusion providing an overview of the development of Washington's Working Age Adult Policy - www.communityinclusion.org/article.php?article_id=222

46. WISCONSIN

- a. **WI Employment First Website:** Website of Wisconsin Employment First - www.wiemploymentfirst.com
- b. **WI APSE Employment First Materials:** Information from WI APSE on Employment First: www.wiapse.org/employment-first
- c. **Sign-On Agreement for WI Employment First Coalition:** Agreement for organizations and individuals for signing on in support of Employment First - www.survivalcoalitionwi.org/wp-content/uploads/2011/12/Survival-Coalition-Employment-sign-on.pdf
- d. **WI Managed Care and Employment Task Force:** Recommendation that managed care long-term care system should support integrated employment as the preferred employment option (pp.6-8) - www.dhs.wisconsin.gov/wipathways/pdf/MCETF%20Final%20Report.pdf

47. WYOMING

- a. **WY Legislation (passed):** Enrolled Act No. 54, Employment First Legislation, enacted July 1, 2014 - <http://legisweb.state.wy.us/2014/Enroll/HB0073.pdf>
- b. **WY DD Council Legislative Platform:** 2013 Wyoming Governor's Council on Developmental Disabilities Legislative Platform calling for implementation of Employment First policies - <http://ddcouncil.state.wy.us/CouncilPlatform13.pdf>

International Efforts

CANADA - Canadian Association for Community Living Report: *Achieving Social and Economic Inclusion: From Segregation to Employment First* - Report on implementing an Employment First policy framework for individuals with intellectual and developmental disabilities - www.cacl.ca/publications-resources/achieving-social-and-economic-inclusion-segregation-employment-first



SELN Working Document



The State Employment Leadership Network (SELN) is a cross-state cooperative venture of state MR/DD agencies that are committed to improving employment outcomes for adolescents and adults with developmental disabilities. Working documents contain information collected in response to state requests, and federal, state and local initiatives of interest to the SELN membership. They are intended to share work in progress but may not be a comprehensive analysis or compilation. Working documents are updated over time as information changes.

Learn More and Get Involved

To learn more about the SELN and how membership can benefit your organization, contact:

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